

#	Case Name	Tentative
		[plaintiff] had no real property interest in the . . .property, [defendant]’s recording of the abstract did not create a real property lien against the . . .property.”)) Jones shall give notice of this ruling.
56.	Myron v. Fitness International LLC 2025-01531632	Defendant Fitness International, LLC’s Demurrer to the First Amended Complaint (“FAC”) is SUSTAINED. Defendant demurs to the second cause of action for negligent hiring, supervision and retention. “California case law recognizes the theory that an employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.” (<i>McKenna v. Beesley</i> (2021) 67 Cal.App.5th 552, 566.) The FAC fails to allege the identity of any particular employee, the unfitness of said employee, what the employee did or did not do, or how the said employee’s actions caused harm to Plaintiff. (See CACI 426.) Plaintiff has not opposed the demurrer, and therefore has not demonstrated a reasonable possibility that the defect can be cured by way of a further amended complaint. Therefore, the demurrer to the second cause of action is SUSTAINED without leave to amend. Defendant shall give notice of this ruling.
57.		
58.	Rogers v. Guzman 2023-01301897	The claim of exemption by plaintiff / judgment debtor / claimant William Rogers and claimant Celestina M. ("Tina") Rogers is GRANTED in part, in the amount of \$16,518.00, as exempt Social Security payments. (Code Civ. Proc., § 704.080; Claim of Exemption, ¶¶ 6, 8, and Attachment 6 thereto.) The remainder of the claims of exemption are DENIED, as claimants have not shown that the remaining levied funds are exempt. (Code Civ. Proc., §§ 703.080, subd. (b), 703.580, subd. (b) [claimants’ burden].) Judgment creditors shall give notice of this ruling.
59.	Rueda v. SKRT	The motion to consolidate is ordered OFF CALENDAR.

[illegible]